



Instructions for Application for Status as a Temporary Resident Under Section 245A of the INA

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-687

Instructions

Read these instructions carefully to properly complete this form. If you need more space to complete an answer, use a separate sheet of paper. Write your name and Alien Registration Number (A-Number), if any, at the top of each sheet of paper and indicate the section and number of the item to which the answer refers.

What Is the Purpose of This Form?

Form I-687 was originally used to apply for status as a temporary resident under the 1986 Immigration Reform and Control Act. While the filing period ended in 1988, Form I-687 is now used to apply for benefits under the terms and conditions of certain settlement agreements.

What Are the Eligibility Requirements?

You are eligible for temporary resident status if:

1. You can establish that you entered the United States before January 1, 1982;
2. You can establish that you have resided continuously in the United States in an unlawful status since such date and through the date the application is considered filed under the settlement agreements. (If you entered the United States as a nonimmigrant before January 1, 1982, you must establish that your period of authorized stay as a nonimmigrant expired before such date through the passage of time or your unlawful status was known to the Government as of such date);
3. You can establish that you have been continuously physically present in the United States since November 6, 1986, and through the date the application is considered filed under the settlement agreements;
4. You are admissible to the United States as an immigrant except as otherwise provided under section 245A(d)(2) of the Immigration and Nationality Act (INA);
5. You have not been convicted of any felony or of three or more misdemeanors committed in the United States;
6. You have not assisted in the persecution of any persons or persons on account of race, religion, nationality, membership in a particular social group, or political opinion; and
7. You registered or are registering under the Military Selective Service Act, if required.

Admissibility

You must be admissible under section 212(a) of the INA in order to be eligible for temporary resident status. If you are inadmissible under any section of 212(a) of the INA, then you may file Form I-690, Application for Waiver of Grounds of Inadmissibility, requesting the grounds of inadmissibility be waived by the Secretary of Homeland Security.

Sections 212(a)(6)(A) (entry in the United States without inspection) and 212(a)(7) (documentary requirements) of the INA do not apply.

The following grounds of inadmissibility **may not** be waived by the Secretary of Homeland Security:

1. Section 212(a)(2)(A)(i)(I) - crimes involving moral turpitude;
2. Section 212(a)(2)(A)(i)(II) - crimes involving controlled substances, except if it relates to a single offense of simple possession of 30 grams or less of marijuana;
3. Section 212(a)(2)(B) - multiple criminal convictions;
4. Section 212(a)(2)(C) - controlled substance traffickers;
5. Section 212(a)(3) - security and related grounds;
6. Section 212(a)(4) - public charge. Except this prohibition does not apply if you are or were an aged, blind, or disabled individual (as defined in section 1614(a)(1) of the Social Security Act). If you demonstrate a history of employment in the United States evidencing self-support without receipt of public cash assistance, then you will be considered admissible.

Documents

Documents to Establish Identity

You must submit proof of identity with your application. The following are examples of the types of documents that may serve to establish your identity:

1. Birth certificate, baptismal certificate, or other evidence of birth;
2. National identification card from your country of origin;
3. Passport;
4. Driver's license;

5. Identification card issued by a school or your State of residence; and
6. Military identification.

Documents to Establish Residence

Documents that may be submitted to prove continuity of residence include but are not limited to:

1. Leases, rent receipts, or deeds or other evidence of a mortgage;
2. Birth certificates of children born in the United States;
3. Employment, union, or other business records;
4. Driver's license receipts or evidence of vehicle registrations;
5. Utility bill receipts;
6. Installment loan records;
7. Church records, medical records; and
8. Affidavits or declarations from credible and verifiable third parties.

If you submit letters from landlords, the correspondence must include the landlord's present address and the beginning and ending dates of your residence. Letters from employers, organizations, or churches should be on official stationery and include relevant dates, the organization's seal (if any), and the signer's name and title.

It is recommended that affidavits or declarations from third parties include the affiant's name, address, and phone number to verify the credibility of the affidavit or declaration.

To evaluate the sufficiency of the applicant's proof of residence, USCIS will take into account the passage of time and attendant difficulties in obtaining corroborative documentation of unlawful residence.

Documents to Establish NWIRP Eligibility

Documents that may be submitted to prove eligibility of your nonimmigrant status prior to January 1, 1982, and that your unlawful status was known to the Government as of such date include but are not limited to:

1. Visitor's visa, student visa, or temporary worker visa;
2. Social Security records;
3. Federal/State tax records;
4. Annual or quarterly address reports;
5. School transcripts;
6. Other Federal Government records;
7. Proof of working without authorization;
8. W-2 forms;

9. Form I-20; and
10. Form I-94, Arrival-Departure Report.

General Instructions

We provide free forms through the USCIS website. To view, print, or complete our forms, you should use the latest version of Adobe Reader, which you can download for free at <http://get.adobe.com/reader/>. If you do not have internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

Signature. You (or your signing authority) must properly complete your application. USCIS will not accept a stamped or typewritten name in place of any signature on this application. If you are under 14 years of age, your parent or legal guardian may sign the application on your behalf. A legal guardian may also sign for a mentally incompetent person. If your application is not signed, or if the signature is not valid, we will reject your application. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. See Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to this form.

Biometric Services Appointment. USCIS may require you to appear for an interview or provide biometrics (fingerprints, photograph, and/or signature) at any time to verify your identity, obtain additional information, and conduct background and security checks, including a check of criminal history records maintained by the Federal Bureau of Investigation (FBI), before making a decision on your application or petition. If we determine that a biometric services appointment is necessary, we will send you an appointment notice with the date, time, and location of your appointment. If you are currently overseas, your notice will instruct you to contact a U.S. Embassy, U.S. Consulate, or USCIS office outside the United States to schedule an appointment.

At your biometrics appointment, you must sign an oath reaffirming that:

1. You provided or authorized all information in the application;
2. You reviewed and understood all of the information contained in, and submitted with, your application; and
3. All of this information was complete, true, and correct at the time of filing.

Copies. You should submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs the original.

NOTE: If you submit original documents when they are not required or requested, **USCIS may destroy them after we receive them.**

Translations. If you submit a document with information in a foreign language, you must also submit a full English translation. The translator must sign a certification that the English language translation is complete and accurate, and that he or she is competent to translate from the foreign language into English. The certification must also include the translator's signature, printed name, the signature date, and the translator's contact information.

USCIS Contact Center. For additional information on the application and Instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at www.uscis.gov/contactcenter or call at **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

Disability Accommodations/Modifications. To request a disability accommodation/modification, follow the instructions on your appointment notice or at www.uscis.gov/accommodationsinfo.

How To Complete Form I-687

1. Type or print legibly in black ink.
2. If you need extra space to complete any item within this application, use a separate sheet of paper. Type or print your name and Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which the answer refers; and sign and date each sheet.
3. Answer all questions fully and accurately. If a question does not apply to you (for example, if you have never been married and the question asks, "Provide the name of your current spouse"), type or print "N/A" unless otherwise directed. If your answer to a question which requires a numeric response is zero or none (for example, "How many children do you have" or "How many times have you departed the United States"), type or print "None" unless otherwise directed.

4. USCIS Online Account Number. You will only have a USCIS Online Account Number (OAN) if you previously filed a form that has a receipt number that begins with IOE. If you filed the form online, you can find your OAN in your account profile. If you mailed us the form, you can find your OAN at the top of the Account Access Notice we sent you. If you do not have a receipt number that begins with IOE, you do not have an OAN. The OAN is not the same as an A-Number.

5. Country of Citizenship or Nationality. Provide the name of the country where you are a citizen and/or national. This is not necessarily the country where you were born. If you do not have citizenship in any country, type or print "stateless" and provide an explanation on a separate sheet of paper. Type or print your name and A-number (if any) at the top of this sheet and indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers, and sign and date the sheet.

Interview

You may be required to be present for a personal interview by a USCIS officer. Failure to appear for a scheduled interview will result in your application being denied for abandonment. There is no appeal of an abandonment denial.

We recommend that you review your copy of your completed application before you go to your biometric services appointment at a USCIS ASC. At your appointment, USCIS will allow you to complete the application process only if you are able to confirm, under penalty of perjury, that all of the information in your application is complete, true, and correct. If you are not able to make that attestation in good faith at that time, we will require you to return for another appointment.

Where to File?

Currently there is no open filing period for submission of this application. USCIS may accept Form I-687 under certain circumstances, and we will provide those applicants with an address when appropriate.

Employment Authorization

Applicants seeking employment authorization must complete and mail Form I-765, Application for Employment Authorization, to the appropriate address noted under the "Where To File?" section of these instructions.

Travel Authorization

Applicants seeking emergent travel authorization must mail Form I-131, Application for Travel Documents, Parole Documents, and Arrival/Departure Records, to the appropriate address noted in the "Where To File?" section of these instructions.

Address Change

If you are not a U.S. citizen, you must notify USCIS of your new address within 10 days of moving from your previous residence. For information on changing your address, go to our website at www.uscis.gov/addresschange, or call the USCIS Contact Center.

NOTE: Do not submit a change of address request to USCIS Lockbox.

USCIS Forms and Information

To ensure you are using the latest version of this form, visit the USCIS Web site at www.uscis.gov where you can obtain the latest USCIS forms and immigration-related information. If you do not have internet access, you may order USCIS forms by calling our toll-free number at **1-800-375-5283**. You may also obtain forms and information by telephoning our USCIS Contact Center at **1-800-375-5283**. For TTY (deaf or hard of hearing) call: **1-800-767-1833**.

As an alternative to waiting in line for assistance at your local USCIS office, you can now schedule an appointment through our Internet-based system, **InfoPass**. To access the system, visit our Web site.

Use the **InfoPass** appointment scheduler and follow the screen prompts to set up your appointment. **InfoPass** generates an electronic appointment notice that appears on the screen.

Penalties

If you knowingly and willfully falsify or conceal a material fact or submit a false document with your Form I-687, we will deny your Form I-687, and may deny any other immigration benefit. In addition, you will face severe penalties provided by law, and may be subject to criminal prosecution.

DHS Privacy Notice

We ask for the information on this form, and associated evidence, to determine if you have established eligibility for the immigration benefit for which you are filing. Our legal right to ask for this information can be found in the Immigration and Nationality Act, as amended. We may provide this information to other government agencies. Failure to provide this information, and any requested evidence, may delay a final decision or result in denial of your Form I-687.

Confidentiality

The information provided in this application is confidential and may only be used as provided in INA Section 245A(c)(5). The information provided is subject to verification by USCIS.